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Case Number: 25STCV15199 Hearing Date: August 25, 2026 Dept: 514

Aron v. Skousen

25STCV15199

Defendants'

Motion to Expunge Lis Pendens

Defendants' Motion to Compel Plaintiff to Provide Further Responses to Form

Interrogatories (Set One)

Defendants' Motion to Compel Plaintiff to Provide Further Responses to Special Interrogatories

(Set One)

Defendants' Motion to Compel Plaintiff to Provide Further Responses to Requests

for Production (Set One)

Defendants' Motion to Compel the Deposition of Francis A. Anderson

Defendants' Motion

to Compel Plaintiff to Provide Further Responses to Requests for Admission (Set

One)

Tentative Ruling

The motion to expunge the lis pendens is

continued until after the motion to seal is heard.

The five discovery motions are denied for

failure to meet and confer as required by Code of Civil Procedure section

2016.040 (as amended effective January 1, 2026.)

Background

This action arises from a dispute over real

property located at 10250 West Sunset Boulevard in Los Angeles (the

“Property”).

On May 23, 2025, Marc Aron (“Aron”) filed the

complaint in this action against Sara Skousen, trustee of the Azria Family

Trust dated August 11, 1995, as amended; Lubov Azria, former trustee of the

Azria Family Trust dated August 11, 1995, as amended; and Does 1 through 100,

asserting causes of action for (1) breach of contract, (2) declaratory relief,

and (3) injunctive relief.

On December 16, 2025, Michael Henri Azria and

Joyce Judith Trojanowski, successor co-trustees of the Azria Family Trust, dated

August 11, 1995, as amended and restated December 28, 2017 (collectively “Trustees”)

filed an answer to the complaint.

Also on December 16, 2025, Trustees filed a cross-complaint against Aron; Reserve Escrow, Inc.; and Roes 1 through 20, asserting causes of action for breach of contract and declaratory relief.

Aron filed an answer to the cross-complaint on January 22, 2026.

Of particular importance to one of the pending motions, on May 29, 2025, Aron filed a notice of recording of notice of pendency of action (a lis pendens). The notice was amended on June 6, 2025.

On September 23, 2025, Trustees – who had not yet been named as defendants and had not previously appeared – filed a motion as nonparties to expunge the lis pendens. On November 20, 2025, the Court denied the Trustees' motion.

Currently before the Court and set for hearing on August 25, 2026, are six motions.

First, on July 15, 2026, Trustees filed a renewed motion to expunge the lis pendens.

Aron filed an opposition on August 6, and Trustees filed a reply on August 12. The hearing on this motion was initially set for hearing on August 19 and was continued to August 25.

(In connection with the motion to expunge, Aron

filed a motion to seal on July 27, 2026.

That motion is set for hearing on September 14.)

Second, on July 6, 2026, Trustees filed a

motion to compel Aron to provide further responses to Form Interrogatories (Set

One). Aron filed an opposition on August

7, and Trustees filed a reply on August 13.

The hearing on this motion was initially set for hearing on August 20

and was continued to August 25.

Third, on July 6, 2026, Trustees filed a

motion to compel Aron to provide further responses to Special Interrogatories

(Set One). Aron filed an opposition on August

7, and Trustees filed a reply on August 13.

The hearing on this motion was initially set for hearing on August 20

and was continued to August 25.

Fourth, on July 6, 2026, Trustees filed a

motion to compel Aron to provide further responses to Requests for Production (Set

One). Aron filed an opposition on August

7, and Trustees filed a reply on August 13.

The hearing on this motion was initially set for hearing on August 20

and was continued to August 25.

Fifth, on July 6, 2026, Trustees filed a

motion to compel Aron to provide further responses to Requests for Admission (Set

One). Aron filed an opposition on August

7, and Trustees filed a reply on August 13.

The hearing on this motion was initially set for hearing on August 20

and was continued to August 25.

Sixth, on July 20, 2026, Trustees filed a

motion to compel the deposition of Francis A. Anderson. Aron filed an opposition on August 10, and

Trustees filed a reply on August 13. The

hearing on this motion was initially set for hearing on August 21 and was

continued to August 25.

Trial is set for January 11, 2027.

RENEWED MOTION TO EXPUNGE LIS PENDENS

Legal Standard

Code

of Civil Procedure section 405.20 provides: "A party to an action who asserts a

real property claim may record a notice of pendency of action in which that

real property claim is alleged." (See

also *Kirkeby v. Super. Ct.*, (2004) 33 Cal. 4th 642, 647.) The notice of

pendency of action is commonly referred to as a "lis pendens."

“At

any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. Evidence or declarations may be filed with the motion to expunge the notice. The court may permit evidence to be received in the form of oral testimony, and may make any orders it deems just to provide for discovery by any party affected by a motion to expunge the notice. The claimant shall have the burden of proof under Sections 405.31 and 405.32.”

(Code

Civ. Proc., § 405.30.)

Section

405.31 states that “the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim.”

Section

405.32 states that “the court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim.”

A

“real property claim” is defined as a cause of action in a pleading that “would,

if meritorious, affect (a) title to, or the right to possession of, specific

real property or (b) the use of an easement identified in the pleading." (Code Civ. Proc., § 405.4.)

"Probable

validity" is defined to mean "that it is more likely than not that the claimant

will obtain a judgment against the defendant on the claim." (Code Civ. Proc., § 405.3.)

Discussion

Currently pending, and set for hearing on September 14, is Aron's

motion to seal certain records submitted in connection with this motion. Depending on how the Court rules on that

motion (and the Court expresses no views as to that motion at this time), the evidence

in the record that the Court can consider in connection with the motion to

expunge might change. (See Cal. Rules of

Court, rule 2.551(b)(6).)

As the evidentiary record is not yet finalized, the Court must

continue the hearing on the motion to expunge to a date at least ten days after

September 14, 2026 (the date of the hearing on the motion to seal).

FOUR MOTIONS TO COMPEL FURTHER RESPONSES TO

WRITTEN DISCOVERY

Legal Standard

"On receipt of a response to interrogatories, the propounding

party may move for an order compelling a further response if the propounding

party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.”

(Code Civ. Proc., § 2030.300, subd. (a).)

Notice of a motion to compel further responses must be given “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a “concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1) & (b)(2); Cal. Rules of Court, rule 3.1345.)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that

other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

“On receipt of a response to a demand for inspection, copying,

testing, or sampling, the demanding party may move for an order compelling

further response to the demand if the demanding party deems that any of the

following apply: (1) A statement of compliance with the demand is

incomplete. (2) A representation of

inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without

merit or too general.” (Code Civ. Proc.,

§ 2031.310, subd. (a).)

Notice of a motion to compel further responses must be given

“within 45 days of the service of the verified response, or any supplemental

verified response, or on or before any specific later date to which the

propounding party and the responding party have agreed in writing.” (Id.,

subd. (c).)

A motion to compel further responses must set forth specific

facts showing good cause for the discovery and must be accompanied by a meet-and-confer

declaration and a separate statement or, in the discretion of the Court, a

“concise outline of the discovery request and each response in dispute.” (Id.,

subd. (b)(1)-(3); Cal. Rules of Court, rule 3.1345.)

“[T]he court shall

impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)

against any party, person, or attorney who unsuccessfully makes or opposes a

motion to compel further response to a demand, unless it finds that the one

subject to the sanction acted with substantial justification or that other

circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310, subd. (h).)

"On receipt of a response to requests for admissions, the

party requesting admissions may move for an order compelling a further response

if that party deems that either or both of the following apply: (1) An answer

to a particular request is evasive or incomplete. (2) An objection to a

particular request is without merit or too general." (Code Civ. Proc., § 2033.290, subd.

(a).)

Notice of a motion to compel further responses must be given

"within 45 days of the service of the verified response, or any supplemental

verified response, or any specific later date to which the requesting party and

the responding party have agreed in writing." (Id., subd. (c).)

A motion to compel further responses must be accompanied by a meet-and-confer

declaration and a separate statement or, in the discretion of the Court, a

"concise outline of the discovery request and each response in dispute." (Id.,

subd. (b)(1) & (b)(2); Cal. Rules of Court, rule 3.1345.)

"The court shall

impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

(Code Civ. Proc., § 2033.290, subd. (d).)

In Chapter 7 of the

Civil Discovery Act, Code of Civil Procedure section 2023.030, subdivision (a)

provides, in pertinent part, that the court may impose a monetary sanction ordering

that any person “engaging in the misuse of the discovery process, or any

attorney advising that conduct, or both pay the reasonable expenses, including

attorney's fees, incurred by anyone as a result of that conduct.” A “misuse of

the discovery process” includes (among other things) failing to respond or to

submit to an authorized method of discovery; making, without substantial

justification, an unmeritorious objection to discovery; making an evasive

response to a discovery request; disobeying a court order to provide discovery;

and making or opposing, unsuccessfully, a motion to compel without substantial

justification. (Code Civ. Proc., § 2023.010, subds. (d)-(h).)

Discussion

A party moving

to compel further responses to interrogatories, requests for production, or requests for admission must file, with the motion, a declaration establishing that the moving party has satisfied the statutory requirement to meet and confer as set forth in Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2030.300, subd. (b)(1) & § 2031.3010, subd. (b)(2) & § 2033.290, subd. (b)(1).)

Code of Civil

Procedure section 2016.040, as amended by the Legislature effective January 1,

2026, provides:

“A meet and

confer declaration in support of a motion shall state facts showing a

reasonable and good faith attempt, either in person, by telephone, or by

videoconference, to informally resolve each issue presented by the motion.”

(Code Civ.

Proc., § 2016.040, subd. (a).)

There is no

evidence in the record that counsel met and conferred in person, by telephone, or

by video conference. On that basis, the

Court must deny all four motions. The

Court need not reach, and does not reach, the other arguments presented by the

parties.

The motions to

compel are denied.

As Trustees'

motions are denied, so is their request for sanctions.

The Court denies Aron's request for

sanctions. Although Trustees have brought

unsuccessful motions to compel, the Court finds that Trustees have acted with

substantial justification and that under all of the circumstances, the

imposition of sanctions against Trustees and counsel would be unjust.

MOTION TO COMPEL DEPOSITION OF

FRANCIS ANDERSON

Legal Standard

"Any party may obtain discovery ... by taking in

California the oral deposition of any person, including any party to the

action." (Code Civ. Proc., §

2025.010.) Code of Civil Procedure

sections 2025.210 through 2025.280 provide the requirements for (among other

things) what must be included in a deposition notice, when and where

depositions may be taken, and how and when the notice must be served.

"The service of a deposition notice ... is

effective to require any deponent who is a party to the action or an officer, director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying.” (Code

Civ. Proc., § 2025.280, subd. (a).)

Section 2025.230 provides: “If the deponent

named is not a natural person, the deposition notice shall describe with

reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate

and produce at the deposition those of its officers, directors, managing

agents, employees, or agents who are most qualified to testify on its behalf as

to those matters to the extent of any information known or reasonably available

to the deponent.”

Section 2025.410 requires any party to serve a

written objection at least three days before the deposition if the party

contends that a deposition notice does not comply with the provisions of

sections 2025.210 through 2025.280.

(Code Civ. Proc., § 2025.410, subd. (a).)

Section 2025.450 provides:

“If, after service of a deposition notice, a

party to the action or an officer, director, managing agent, or employee of a

party, or a person designated by an

organization that is a party under Section 2025.230,

without having served a valid objection under Section 2025.410, fails to appear

for examination, or to proceed with it, or to produce for inspection any

document, electronically stored information, or tangible thing described in the

deposition notice, the party giving the notice may move for an order compelling

the deponent's attendance and testimony, and the production for inspection of

any document, electronically stored information, or tangible thing described in

the deposition notice."

(Code

Civ. Proc., § 2025.450, subd. (a).) The

motion must be accompanied by a meet and confer declaration under Code of Civil

Procedure section 2016.040, "or, when the deponent fails to attend the

deposition and produce the documents ... by a declaration stating that the

petitioner has contacted the deponent to inquire about the nonappearance." (Id., subd. (b)(2).) The motion must also "set forth specific

facts showing cause" for the production of documents. (Id., subd. (b)(1).)

When a motion to compel is granted, "the court

shall impose a monetary sanction under Chapter 7 (commencing with Section

2023.010) in favor of the party who noticed the deposition and against the

deponent or the party with whom the deponent is affiliated, unless the court

finds that the one subject to the sanction acted with substantial justification

or that other circumstances make the imposition of the sanction unjust.”

(Code Civ. Proc., § 2025.450, subd. (g)(1).)

In

Chapter 7 of the Civil Discovery Act, section 2023.010, subdivision (d),

defines “[m]isuses of the discovery process” to include “[f]ailing to respond

to or to submit to an authorized method of discovery.” Where a party or attorney has engaged in

misuse of the discovery process, the court may impose a monetary sanction in

the amount of “the reasonable expenses, including attorney’s fees, incurred by

anyone as a result of that conduct.” (Code

Civ. Proc., § 2023.030, subd. (a).)

Discussion

A party moving

to compel a deposition must file, with the motion, a declaration establishing

that the moving party has satisfied the statutory requirement to meet and

confer as set forth in Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2025.450, subd.

(b)(2).)

As noted above, Code

of Civil Procedure section 2016.040, as amended by the Legislature effective

January 1, 2026, provides:

"A meet and

confer declaration in support of a motion shall state facts showing a

reasonable and good faith attempt, either in person, by telephone, or by

videoconference, to informally resolve each issue presented by the motion."

(Code Civ.

Proc., § 2016.040, subd. (a).)

There is no

evidence in the record that counsel met and conferred in person, by telephone, or

by video conference. On that basis, the

Court must deny this motion. The Court

need not reach, and does not reach, the other arguments presented by the

parties.

The motion to

compel is denied.

As Trustees'

motion is denied, so is their request for sanctions.

The Court denies Aron's request for

sanctions. Although Trustees have brought

an unsuccessful motion to compel, the Court finds that Trustees have acted with

substantial justification and that under all of the circumstances, the

imposition of sanctions against Trustees and counsel would be unjust.

CONCLUSION

The Court CONTINUES the hearing on

the Trustees' motion to expunge the lis pendens to a date at least ten days

after September 14, 2026.

The Court DENIES the five motions to

compel filed by the Trustees.

The Court DENIES both sides' requests

for sanctions.

Moving parties are ordered to give

notice.